

26STCV04444 26STCV04444

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-02

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Case Number: 26STCV04444 Hearing Date: July 2, 2026 Dept: 512

HEARING DATE: Thurs., July 2, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Mora,

et al. v. Cedars-Sinai Medical Center COMP.

FILED: 02-10-26

CASE NUMBER: 26STCV04444

FAC FILED: 06-18-26

NOTICE OK

PROCEEDINGS: DEMURRER

AND MOTION TO STRIKE;

MOTION

TO SUBSTITUTE PLAINTIFF

MOVING PARTY: Defendant Cedars-Sinai Medical Center

(Demurrer);

Plaintiff

Robert Mora on behalf of Elizabeth Mora (Motion to Substitute Plaintiff)

RESP. PARTY: None

DEMURRER

AND MOTION TO STRIKE;

MOTION TO SUBSTITUTE PLAINTIFF

(CCP §§ 430.10, et seq; 377.31)

TENTATIVE RULING:

Defendant Cedars-Sinai
Medical Center's unopposed Demurrer and Motion to Strike Portions of
Plaintiff's Complaint are DENIED AS MOOT.

Plaintiff
Robert Mora on behalf of Elizabeth Mora's unopposed Motion to Substitute Robert Mora as
Plaintiff and Appoint Him as Successor in Interest is GRANTED.

Robert Mora is substituted
in as Plaintiff in this action in place of deceased Plaintiff Elizabeth Mora.

The
Court schedules Jury Trial for August 16, 2027 at 9:30 a.m. in Department 512
at Stanley Mosk Courthouse.

Final Status Conference is
scheduled for August 6, 2027 at 9:30 a.m. in department 512 of Stanley Mosk
Courthouse.

Plaintiff has not posted
jury fees. Parties demanding a jury trial shall post jury fees within 2 weeks
from the date of this order, or the right to a jury trial shall be deemed
waived.

Parties are ordered to
follow Department 512 courtroom rules for trial preparation and trial
documents.

Moving parties are ordered
to give notice.

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SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of June 29, 2026 ☐ Late ☒

None

REPLY: None

filed as of June 29, 2026 ☐ Late ☒

None

ANALYSIS:

I.

Background

On February 10, 2026, Plaintiff

Elizabeth Mora, by and through her guardian ad litem, Robert Mora, ("Plaintiff") filed the instant action against Defendant Cedars-Sinai Medical Center ("Defendant") and Does 1-40, alleging causes of action for Medical Negligence and Reckless and Willful Neglect in Violation of the Elder Abuse and Dependent Adult Civil Protection Act.

On February 17, 2026, Robert Mora was appointed Guardian Ad Litem of Elizabeth Mora.

On March 27, 2026, Defendant filed the instant Demurrer to Plaintiff's Complaint (the "Demurrer") and Motion to Strike Portions of Plaintiff's Complaint (the "Motion to Strike").

On March 30, 2026, Plaintiff filed a Notice of Death of Plaintiff and Abatement of Case.

On April 10, 2026, Plaintiff filed the instant Motion to Substitute Robert Mora as Plaintiff and Appoint Him as Successor in Interest (the "Motion").

On June 18, 2026, Plaintiff Robert Mora on behalf of Elizabeth Mora, who is now deceased, filed and served a First Amended Complaint ("FAC").

To date, no Opposition to the Demurrer, Motion to Strike, or Motion have been filed.

II.

Legal

Standard & Discussion

A.

Demurrer

Defendant

demurred to the Complaint on March 27, 2026.

On June 18, 2026, Plaintiff filed a FAC.

"A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike." (Code Civ. Proc., § 472, subd. (a).)

Here,

the FAC was filed and served nine court days prior to the instant hearing. Accordingly, the FAC was timely as it was served and filed no later than the date for filing an opposition to the Demurrer.

Thus,

the Demurrer as to the original Complaint is MOOT.

B.

Motion
to Substitute Plaintiff

Here, the FAC filed in this matter
names Robert Mora as Plaintiff in this action, and Robert Mora has already been
ordered Guardian Ad Litem for Elizabeth Mora. (2/17/26 Order.)

The Motion states that Plaintiff Elizabeth Mora passed away
on February 19, 2026, and Robert Mora, Plaintiff's successor in interest and
surviving spouse, moves to substitute in as plaintiff in this action. (Motion, Mora
Decl., Exh.)

Code of Civil Procedure section 377.30 states, in pertinent
part, that "[a] cause of
action that survives the death of the person entitled to commence an action or
proceeding passes to the decedent's successor in interest."

"On motion after the death of a person who commenced an
action or proceeding, the court shall allow a pending action or proceeding that
does not abate to be continued by the decedent's personal representative or, if
none, by the decedent's successor in interest." (Code Civ. Proc., § 377.31.)

The person who seeks to commence an
action or to continue a pending action as the decedent's successor in interest
shall "execute and file an affidavit or a
declaration under penalty of perjury under the laws of this state stating all
of the following:

- (1) The decedent's name.
- (2) The date and place of the decedent's death.
- (3) "No proceeding is now pending in California for
administration of the decedent's estate."
- (4) If the decedent's estate was administered, a copy
of the final order showing the distribution of the decedent's cause of action
to the successor in interest.
- (5) Either of the following, as appropriate, with

facts in support thereof:

(A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding."

(B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding."

(6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding."

(7) "The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct."

(b) Where more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact.

(c) A certified copy of the decedent's death certificate shall be attached to the affidavit or declaration.

(Code Civ. Proc., § 377.32.)

"The court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." (Code Civ. Proc., § 377.33.)

Here, Robert Mora executed and filed a declaration under penalty of perjury stating: (1) the Decedent's name is Elizabeth Mora, who is the named Plaintiff in this matter; (2) Decedent/Plaintiff passed away on February 19, 2026, in San Dimas County; (3) "[n]o proceeding is now

pending in California for administration of [Decedent/Plaintiff's] estate"; (4) Robert Mora is Decedent/Plaintiff's surviving spouse and successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure); (5) "[n]o other person has a superior right to be substituted for the decedent in the pending action or proceeding"; and (6) Robert Mora declares "under penalty of perjury under the laws of the State of California that the foregoing is true and correct." (Motion, Mora Decl. ¶¶ 1-5.)

Additionally, a certified copy of the Plaintiff/Decedent's death certificate is attached to the Motion and declaration. (Motion, Mora Decl., ¶ 3, Exh.)

Based on the foregoing, the Court finds the requirements of Code of Civil Procedure sections 377.30, 377.31, 377.32, and 377.33 are satisfied.

Thus, the Motion is GRANTED.

III.

Conclusion
& Order

For the foregoing reasons, Defendant Cedars-Sinai Medical Center's unopposed Demurrer and Motion to Strike Portions of Plaintiff's Complaint are DENIED AS MOOT.

Plaintiff

Robert Mora on behalf of Elizabeth Mora's unopposed Motion to Substitute Robert Mora as Plaintiff and Appoint Him as Successor in Interest is GRANTED.

Robert Mora is substituted in as Plaintiff in this action in place of deceased Plaintiff Elizabeth Mora.

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